

20STCV04836 20STCV04836

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C08%2F14%2F2026

Source SHA-256: e436e604415d38b95775aabcb79b781ab96120c7be2c0d7a6937ea6f838eb590

Case Number: 20STCV04836 Hearing Date: August 14, 2026 Dept: 617

Dept.

617

Date:

8-14-26

Case

#: 20STCV04836

Trial

Date: None Set

JUDGMENT ON THE PLEADINGS

MOVING

PARTY: Defendant, Aerotek, Inc.

RESPONDING

PARTY: Plaintiff, Manuel Reyes

RELIEF

REQUESTED

Motion

for Judgment on the Pleadings

SUMMARY

OF ACTION

On

February 6, 2020, Plaintiff Manuel Reyes filed an 11 cause of action complaint against Defendants Aerotek, Inc. and Dispensing Dynamics International, Inc. (DDI), which included a PAGA claim. On September 16, 2020, Plaintiff filed a Third Amended Complaint asserting only a PAGA claim. On October 25, 2022, the Court ordered Plaintiff to arbitrate his individual PAGA claim and stayed the action. On May 1, 2024, the arbitrator issued an award dismissing Plaintiff's individual claim as time-barred under Code of Civil Procedure section 1281.12 for failure to timely demand arbitration. The Court granted Aerotek's petition to confirm the award on May 28, 2025.

RULING: Stay/Off
calendar.

Request for Judicial Notice:
Granted in part.

The Court takes judicial notice of
the existence of the arbitration award and this Court's order confirming the award and the truth of the results reached therein. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885-86.)
Judicial notice is not taken of the remaining documents because they are immaterial to the Court's ruling. (People ex rel. Lockyer v. Shamrock Foods Co. (2000) 24 Cal.4th 415, 422, fn. 2.)

Aerotek,
joined by DDI, moves for judgment on the pleadings on Plaintiff's Third Amended Complaint. They argue that under Williams v. Alacrity Solutions Group, LLC (2025) 110 Cal.App.5th 932, review granted July 9, 2025, S291199, the arbitrator's award dismissing Plaintiff's individual PAGA claim as time-barred means the representative action cannot be maintained. Plaintiff opposes the motion, contending that the arbitrator's decision does not preclude representative standing. All parties alternatively request a stay pending the outcome of the Supreme Court's review of Williams. Because the ruling in Williams potentially disposes of the issues here, or at the very least narrows or clarifies them, the Court exercises its discretion to stay the instant action pending conclusion of the Supreme Court's review. Doing so favors judicial economy. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

The Court will seek updates on the pending review and therefore sets an OSC re: Status of Appeal for 90-120 days from the hearing date. Depending on the update, the Court will either further continue the stay or lift the stay and set new hearing date(s) for further consideration of the motion for judgment on the pleadings.

The Court takes the motion for judgment on the pleadings off calendar and vacates the September 21, 2026 Case Management Conference.

Aerotek to give notice.